

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Esme Trontz	Team: Squad #7	CCRB Case #: 202006822	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 07/11/2020 10:10 PM	Location of Incident: § 87(2)(b)	Precinct: 113	18 Mo. SOL 1/11/2022	EO SOL 5/4/2022	
Date/Time CV Reported Tue, 10/13/2020 12:23 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 10/13/2020 12:23 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Patrick Nozdrovicky	7263	939125	113 DET
2. DT3 Francisco Adames	1542	939842	113 DET
3. An officer			
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Steven Singh	4422	946260	113 PCT
2. DT3 Alexandr Craivan	342	945624	113 DET

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Patrick Nozdrovicky	Discourtesy: Detective Patrick Nozdrovicky spoke discourteously to § 87(2)(b)	§ 87(2)(b)
B.DT3 Patrick Nozdrovicky	Abuse: Detective Patrick Nozdrovicky threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
C.DT3 Patrick Nozdrovicky	Abuse: Detective Patrick Nozdrovicky threatened to arrest § 87(2)(b)	§ 87(2)(b)
D.DT3 Patrick Nozdrovicky	Abuse: Detective Patrick Nozdrovicky seized § 87(2)(b)'s vehicle.	§ 87(2)(b)
E.DT3 Francisco Adames	Abuse: Detective Francisco Adames searched the vehicle in which § 87(2)(b) was an occupant.	§ 87(2)(b)
F. An officer	Abuse: An officer refused to show the search warrant to § 87(2)(b)	§ 87(2)(b)
G. Officers	Abuse: Officers damaged § 87(2)(b)'s property.	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with IAB on September 24, 2020. It was received by the CCRB on October 13, 2020 via IAB log #2020-23038.

On July 11, 2020, at approximately 10:10 p.m., § 87(2)(b) checked into § 87(2)(b) in Queens after he was shot in the leg. When he was recovering in his hospital bed, Detectives Patrick Nozdrovicky and Alexandr Craivan of the 113th Precinct Detective Squad came to question him. § 87(2)(b) could not give complete or exact answers for some of the questions Detective Nozdrovicky asked. In response, Detective Nozdrovicky allegedly said, “If I find out you’re fucking lying, your ass is mine” (**Allegation A: Discourtesy-Word, § 87(2)(g); Allegation B: Abuse of Authority- Threat of Force, § 87(2)(g); and Allegation C: Abuse of Authority- Threat of Arrest, § 87(2)(g)**). § 87(2)(b)'s truck, which he had been driving when he was shot, was towed to the 113th Precinct stationhouse and searched for evidence of the shooting (**Allegation D: Abuse of Authority- Property Seizure, § 87(2)(g); and Allegation E: Abuse of Authority- Vehicle Search, § 87(2)(g)**). Over the next few months, § 87(2)(b) visited the 113th Precinct stationhouse multiple times, and each time allegedly asked officers to see a copy of the search warrant for his vehicle. They allegedly did not provide it to him, instead providing a property voucher for his truck (**Allegation F: Abuse of Authority- Refusal to Show Search Warrant, § 87(2)(g)**). § 87(2)(b) alleged that, when he received his truck in October 2020, the door of his glove compartment would not stay closed and that part of the panel in the corner was broken (**Allegation G: Abuse of Authority- Property Damaged, § 87(2)(g)**). § 87(2)(b) was not arrested or summonsed during this incident. No video footage was obtained for this incident.

Findings and Recommendations

Allegation (A) Discourtesy: Detective Patrick Nozdrovicky spoke discourteously to § 87(2)(b).

Allegation (B) Abuse of Authority: Detective Patrick Nozdrovicky threatened § 87(2)(b) with the use of force.

Allegation (C) Abuse of Authority: Detective Patrick Nozdrovicky threatened to arrest § 87(2)(b).

§ 87(2)(b) was interviewed by the CCRB via telephone on November 16, 2020 (Board Review #01). Detective Nozdrovicky was interviewed by the CCRB on April 7, 2021, and Detective Craivan was interviewed by the CCRB on May 6, 2021.

It is undisputed that § 87(2)(b) was shot in the leg, after which he was taken to § 87(2)(b) for treatment. Detectives Nozdrovicky and Craivan went to the hospital to interview § 87(2)(b) about what happened. § 87(2)(b) was unable to answer some of Detective Nozdrovicky's questions about exactly where and when the shooting occurred, and Detective Nozdrovicky told him he could be arrested.

§ 87(2)(g) testified that Detective Nozdrovicky said, “If I find out you’re fucking lying, your ass is mine.” Two nurses told § 87(2)(b) they did not know why Detective Nozdrovicky was talking to him like that.

Detective Nozdrovicky testified that he and Detective Craivan went to the alleged location of the shooting (§ 87(2)(b)) before going to § 87(2)(b) to

interview § 87(2)(b) At 110th and Brewer, they spoke with several potential witnesses and reviewed video footage from nearby businesses but found no evidence of a shooting occurring at that location. At the hospital, after talking to § 87(2)(b) for approximately five minutes, Detective Nozdrovicky believed that § 87(2)(b) was being untruthful and evasive with his answers. He based this evaluation on his knowledge of the details of the incident and § 87(2)(b)'s demeanor. § 87(2)(b) said he did not know where precisely he was and at what time the shooting occurred and allegedly changed his testimony several times. Detective Nozdrovicky had seen, on video footage, § 87(2)(b)'s vehicle leaving a parking lot near the location approximately two hours before he said the shooting happened. Detective Nozdrovicky believed § 87(2)(b) was hiding some pieces of information regarding the incident. Detective Nozdrovicky told § 87(2)(b) that if he was being untruthful with the officers, he would have to arrest him for making a false statement regarding a police investigation. § 87(2)(b) asked Detective Nozdrovicky if he was threatening him, to which he replied that he was not, but merely explaining to him that he would have to arrest him if he was making a false statement. § 87(2)(b) repeated, "You're threatening me, are you threatening me?," to which Detective Nozdrovicky replied that he was not threatening him.

While Detective Nozdrovicky said he and Detective Craivan went to the shooting location before speaking with § 87(2)(b) Detective Craivan testified that they did the opposite. Detective Craivan did not have any specific information about the shooting at the time they were interviewing § 87(2)(b). He remembered that Detective Nozdrovicky had a lot of trouble obtaining information from § 87(2)(b) because he gave vague answers regarding his whereabouts before the incident and the exact time and location of the shooting. Detective Craivan could not say for sure whether he thought § 87(2)(b) was intentionally withholding information, lying, or merely forgetting details of the shooting, because he had no further details about it. The tone of the conversation between § 87(2)(b) and Detective Nozdrovicky did not seem to change over time. Detective Craivan did not remember Detective Nozdrovicky alleging § 87(2)(b) was lying to him, nor saying to § 87(2)(b) that he could be arrested.

Detective Nozdrovicky denied making the statement, "If I find out you're fucking lying, your ass is mine," and denied using any other profanities. Detective Craivan did not hear Detective Nozdrovicky make this statement and denied making this statement himself. He did not believe Detective Nozdrovicky would have alleged § 87(2)(b)'s statement contradicted the facts they had already obtained, because there was no reason Detective Nozdrovicky would have known more about the shooting than he did. He did not remember Detective Nozdrovicky telling § 87(2)(b) he could be arrested for making a false report.

The DD5s for the investigation are consistent with Detective Nozdrovicky's testimony, § 87(2)(g) at 8:45 p.m., he and Detective Craivan canvassed at the alleged shooting location and found no useful evidence, and at 10:10 p.m., they interviewed § 87(2)(b) at the hospital (Board Review #02). Detective Nozdrovicky's narrative of the interview is consistent with his interview testimony, as it details that throughout the interview, he realized information he gave earlier was incorrect and that he could not provide some information about conversations, locations, and timing.

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Allegation (D) Abuse of Authority: Detective Patrick Nozdrovicky seized § 87(2)(b)'s vehicle.

Allegation (E) Abuse of Authority: Detective Francisco Adames searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (F) Abuse of Authority: An officer refused to show the search warrant to § 87(2)(b).

Allegation (G) Abuse of Authority: Officers damaged § 87(2)(b)'s property.

§ 87(2)(b) testified that, while he was at the hospital, he received a call from either his girlfriend or his father that his truck had been towed. He went home soon after. Detective Nozdrovicky visited his home the next day asking for consent to search his truck for investigative evidence, and § 87(2)(b) provided verbal consent. Detective Nozdrovicky said § 87(2)(b) had to come to the stationhouse to sign paperwork providing official consent, and § 87(2)(b) said that he would after speaking with his father. At some point, he and his father came to the stationhouse but Detective Nozdrovicky was not there, and it is unclear whether he signed consent paperwork.

§ 87(2)(b) went to the precinct several times over the next three months, each time asking for an update on the return of his vehicle, but every time, Detective Nozdrovicky was not there, and other officers said they could not discuss the case with him. He repeatedly asked the officer or officers he spoke with at the stationhouse for a copy of the search warrant for his vehicle but only got a document stating his vehicle was vouchered for investigatory purposes. § 87(2)(b) did not provide the exact dates of these visits to the stationhouse nor did he provide descriptions of the officer or officers he spoke with.

§ 87(2)(b) also alleged that, when he finally retrieved his vehicle in October 2020, part of his glove compartment was broken, so that when he tried to close his glove compartment, the lid fell off. Part of the panel in the corner of the vehicle was also broken. § 87(2)(b) did not provide photographs of the alleged damage.

Detective Nozdrovicky testified that he originally requested § 87(2)(b)'s consent to search his vehicle because obtaining consent is usually a faster and easier process than obtaining a search warrant. After he left § 87(2)(b)'s house, he returned to the stationhouse and soon left for the day without seeing § 87(2)(b) again. Detective Nozdrovicky found out from another officer that § 87(2)(b) never signed the consent paperwork, so another detective merely obtained a search warrant for the vehicle. Det. Nozdrovicky never searched the vehicle himself because he was not working at the time it was searched, and he wanted the vehicle to be searched as quickly as possible. He never saw inside the vehicle and was unaware that there had been damage to the glove compartment or the panel in the corner of the vehicle. Detective Nozdrovicky stated that emergency services likely had to be called to unlock the vehicle because they never got the keys from § 87(2)(b) and that they may have caused damage by entering. Detective Craivan had no further involvement with this case after the night of the incident and did not know if § 87(2)(b)'s truck suffered any damage from the search.

At some points throughout the investigation (from July to October, 2020), Detective Nozdrovicky spoke with § 87(2)(b) in person and over the phone, during which § 87(2)(b) asked him for the

status of his vehicle. Each time, Detective Nozdrovicky told him his vehicle was still part of an active investigation and that it would be released once the investigation was concluded. A few times, the officer working at the desk and handling property, whose name Detective Nozdrovicky could not remember, told him § 87(2)(b) came by asking for his car to be returned. This officer never told Detective Nozdrovicky that § 87(2)(b) asked to see the warrant, but according to Detective Nozdrovicky the property officer would not necessarily have had access to the warrant, though § 87(2)(b) would be entitled to see it. § 87(2)(b) never directly asked Detective Nozdrovicky to see the search warrant and Detective Nozdrovicky did not hear him ask any other officers. It was several months before § 87(2)(b)'s truck could be returned because Detective Nozdrovicky attempted to coordinate with the District Attorney's office to get a warrant for § 87(2)(b)'s GPS system, but this was unsuccessful. Detective Craivan did not remember ever seeing § 87(2)(b) at the stationhouse.

Search Warrant #0 § 87(2)(b), prepared by Detective Francisco Adames of the 113th Detective Squad and signed by the Honorable § 87(2)(b) at § 87(2)(b), allowed the search of § 87(2)(b)'s vehicle for "shell casings, bullets, bullet fragments, and any other ballistic evidence" within ten days of the issuance of the warrant (Board Review #03). Detective Christopher Cruzado of the 113th Detective Squad prepared a DD5 on July 13, 2020 stating that he, Sergeant Christopher Esposito of the 102nd Detective Squad, and Police Officer (now Detective) Stephen Schmitt of the 113th Detective Squad searched § 87(2)(b)'s vehicle and found no ballistics evidence (Board Review #02). Property Voucher # § 87(2)(b) shows that § 87(2)(b)'s truck was seized for investigatory purposes (Board Review #04). § 87(2)(b) did not witness the search of his vehicle.

At the time § 87(2)(b)'s truck was seized and searched, the investigation was ongoing (per the DD5s) and no arrests had been made (Board Review #02).

Patrol Guide Procedure 218-19 allows officers to seize and invoice a vehicle as investigatory evidence when a criminal investigation is required and no arrest has been made (Board Review #05). Criminal Procedure Law 690.30 states that a search warrant must be executed within ten days of issuance on any day of the week (Board Review #06).

§ 87(2)(g)
[REDACTED]

Detective Nozdrovicky confirmed § 87(2)(b)'s testimony that he came to the stationhouse asking the property officer about his truck, but never heard that he asked to see the warrant. § 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

